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Date: 2026.10.22 17:23:22 +0530

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

COMM. ARBITRATION APPLICATION NO. 92 OF 2026
WITH
COMM. ARBITRATION PETITION NO.214 OF 2025

Bharat Petroleum Corporation Ltd … Applicant

V/s.

M/s. Sukhram Fuels and Others … Respondents

Mr. S. R. Page with Ms. Ruchi Umrotkar with Ms. Janhavi Kolge, for Applicant-Petitioner.

CORAM : AMIT BORKAR, J.

DATED : OCTOBER 22, 2026

P.C.:

1. The present Application has been filed under Section 11 of the Arbitration and Conciliation Act, 1996 ("the Act"), seeking the appointment of an Arbitrator for adjudication of the disputes and differences stated to have arisen between the parties under an Agreement dated 30 March 2019. The arbitration agreement between the parties is contained in Clause 19 of the said Agreement, a copy whereof is placed at page 52 of the Application. In the interest of brevity, the said arbitration clause is not reproduced herein. It would suffice to observe that the present Application falls within the jurisdiction of this Court.

2. The record indicates that the Applicant invoked the arbitration agreement by issuing a notice dated 27 February 2025.

3. Upon perusal of the material placed on record, it is evident that the arbitration agreement has been duly invoked by the Applicant.

4. The existence of an Arbitration Clause is not in dispute; however, the objection regarding individual directors being made parties to the Arbitration can be raised before the Arbitrator and, in case such objection is raised, the Arbitrator shall rule upon such objection without being influenced by the order of appointment of the Arbitrator. The contentions of both the parties are kept open.

5. This Court is satisfied that a valid and subsisting arbitration agreement exists between the parties and that the said agreement has been duly invoked. It would, therefore, be appropriate to refer the disputes and differences arising out of or in connection with the aforesaid Agreement dated 30 March 2019 to the arbitration before a Sole Arbitrator.

6. In the aforesaid circumstances, the present Application under Section 11 of the Act, is deserved to be disposed of in terms of the following order:

> A) **Ms Kajol A. Punjabi,** Advocate of this court, is hereby appointed as the Sole Arbitrator to adjudicate upon the disputes and differences between the parties arising out of and in connection with the Agreement referred to above;
>
> Office Address:-C/o Sr. Adv. Gaurav Joshi, 302B, Fort Chambers, Next to Hamam Street Post Office, Fort, Mumbai – 400001

Email: kajolpunjabi97@gmail.com

B) A copy of this Order will be communicated to the Learned Sole Arbitrator by the Advocates for the Applicant within a period of one week from today. The Applicant shall provide the contact and communication particulars of the parties to the Arbitral Tribunal along with a copy of this Order;

C) The Learned Sole Arbitrator is requested to forward the statutory Statement of Disclosure under Section 11(8) read with Section 12(1) of the Act to the Advocates for the Applicant so as to enable them to file the same in the Registry of this Court. The Registry of this Court shall retain the said Statement on the file of this Applicant and a copy of the same shall be furnished by the Advocates for the Applicant to the Advocates for the Respondent;

D) The parties shall appear before the Learned Sole Arbitrator on such date and at such place as may be indicated by the Learned Sole Arbitrator, for obtaining appropriate directions with regard to the conduct of the arbitral proceedings, including fixing the schedule for filing of pleadings, examination of witnesses, if any, and dates of hearing. At such meeting, the parties shall furnish to the Arbitral Tribunal valid and functional email addresses, together with the mobile and landline telephone numbers of their respective Advocates.

Communications sent to the said email addresses shall constitute valid service of correspondence in connection with the arbitral proceedings.

E) All arbitral costs and fees of the arbitration and of the Arbitral Tribunal shall be borne by the parties equally in the first instance. The same shall, however, remain subject to any final Award that may be passed by the Arbitral Tribunal in relation to costs.

7. The Petition under section 9 shall be treated as an application under section 17 of the Arbitration and Conciliation Act, 1996, before the Arbitral Tribunal.

8. The Learned Sole Arbitrator shall be at liberty to adjudicate upon the claims and counterclaims, if any, and to determine all questions relating to merits, in accordance with law.

9. All actions required to be taken pursuant to this order shall be taken upon receipt of a downloaded copy as available on this Court's website.

10. The Arbitration Application stands disposed of in above terms.

(AMIT BORKAR, J.)